

Sanjay Kumar Yadav v. State of U.P.

Allahabad High Court · Division Bench · 2 January 2023 · WRIT - C No. - 38012 of 2022 · **Writ disposed of; consumer left to clause 6.5.**

HEADNOTE

A writ challenging a Rs.16,94,099 recovery demand said to arise from theft and unauthorised use of electricity was not entertained. The Division Bench accepted that clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is an efficacious remedy, left the consumer free to take that recourse, and disposed of the petition observing that the competent authority should proceed strictly in accordance with law. The demand was not examined on merits.

FACTUAL SUMMARY

Sanjay Kumar Yadav petitioned the Allahabad High Court against a demand notice dated 28 January 2022 issued by the Executive Engineer, Vidyut Vitran Nigam Limited, Khalilabad, Sant Kabir Nagar, claiming recovery of Rs.16,94,099. The distribution company's counsel objected that the controversy concerned theft and unauthorised use of electricity, that the Uttar Pradesh Electricity Supply Code, 2005 was a complete code, and that an appeal lay under clause 6.5. Standing Counsel appeared for the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ maintainability; theft/UUE demand; alternate remedy

HOLDING

Where a consumer challenges a distribution licensee's demand notice alleged to arise from theft and unauthorised use of electricity, the writ court will not entertain the petition if clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 is available as an efficacious remedy; the consumer may take that statutory recourse and the competent authority is to proceed strictly in accordance with law. ¶ 1

FLAG Court and counsel called cl. 6.5 an 'appeal' for theft and unauthorised use; cl. 6.5 is the billing-complaint route, not the s.126/127 or theft appeal.

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused to entertain the writ on a preliminary objection and left the consumer to clause 6.5, without examining the Rs.16,94,099 demand. ¶ 1

clause-6.5-statutory-remedy The Court treated clause 6.5 of the 2005 Code as an efficacious statutory path for a demand said to arise from theft and unauthorised use. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS.16,94,099 DEMAND AND WHETHER THE CONSUMPTION WAS THEFT OR UNAUTHORISED USE

Writ not entertained; consumer left to clause 6.5. ¶ 1